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IN ASSEMBLY

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Introduced by M. of A. CUNNINGHAM, SIMONE, LEVENBERG, MITAYNES, FORREST, GALLAGHER, SIMON, HEVESI, BORES, SHRESTHA, GONZALEZ-ROJAS, BICHOTTE HERMELYN, MAMDANI, ROSENTHAL, LEE, DAVILA, CRUZ, ZACCARO, GIBBS, JACKSON, MEEKS, KELLES, WEPRIN, RAJKUMAR, TAYLOR, CLARK, CHANDLER-WATERMAN, RAGA, DAIS, RAMOS, EICHENSTEIN, VANEL, DE LOS SANTOS, LASHER, KIM, SANTABARBARA, TAPIA, ROMERO, ZINERMAN, STECK, JENSEN, McDONOUGH, HOOKS, O'PHARROW, TORRES, RIVERA, SMULLEN, VALDEZ -- read once and referred to the Committee on Local Governments -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general municipal law, in relation to enacting the "faith-based affordable housing act" and residential development on religious land

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "faith-based affordable housing act".

3 § 2. The general municipal law is amended by adding a new section 96-c
4 to read as follows:

5 § 96-c. Residential development on religious land. 1. For the purposes
6 of this section, the following terms shall have the following meanings:

7 (a) "Covered site" shall mean any parcel of land, or group of one or
8 more contiguous parcels of land, that lies within an urban area as
9 defined by the U.S. Census Bureau but does not lie within a locally
10 designated manufacturing or industrial zoning district, where such
11 parcel or group of one or more contiguous parcels of land is owned sole-
12 ly, directly or indirectly (e.g. via a wholly owned limited liability
13 company) by a religious corporation as of the effective date of this
14 section.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (b) "Religious corporation" shall have the same meaning as defined in
2 the religious corporations law and shall also include nonprofit corpo-
3 rations that include in their purpose worship or the training or
4 conducting of religious rituals or the reading or study of religious
5 texts incorporated under the not-for-profit corporation law or foreign
6 corporations subject to such law.

7 (c) "Buildings department" shall mean the city, town, or village
8 department, division, or other agency or office having primary super-
9 vision of the construction of buildings and issuance of building
10 permits.

11 (d) "Commissioner" shall mean the commissioner of the division of
12 housing and community renewal.

13 (e) "Residential building" shall mean any structure used in part or
14 entirely for full-time, non-transient residential occupation that
15 contains at least four residential units; that is connected to community
16 or public water and sewerage systems, including sewage treatment works,
17 upon date of initial occupancy; and in which no more than thirty-five
18 percent of the floor area is devoted to religious or educational use or
19 charitable or community facility use, provided that any existing reli-
20 gious, educational, charitable, or community facility floor area shall
21 not be counted toward such thirty-five percent in the case that the
22 residential building is an addition or an enlargement of an existing
23 building.

24 (f) "Affordable unit" shall mean a housing unit affordable to a
25 specific percentage of the applicable area median income, as defined
26 annually by the U.S. Department of Housing and Urban Development. Such
27 units may either be homeownership or rental units.

28 (g) "Affordability percentage" shall mean the percentage of a residen-
29 tial building's gross floor area required to be set aside as affordable
30 housing.

31 (h) "Affordable floor area" shall mean the amount of a residential
32 building's floor area to be set aside for affordable units.

33 (i) "Construction" and variations thereof shall mean the construction
34 of new residential buildings as well as the addition to or alteration of
35 existing buildings.

36 (j) "Qualifying mass transit station" shall mean any rail station,
37 including subway stations, within the state of New York that is not
38 operated on an exclusively seasonal basis and that is owned, operated,
39 or otherwise served by Metro-North railroad, the Long Island railroad,
40 the port authority of New York and New Jersey, the New Jersey transit
41 corporation, the New York city transit authority, or the metropolitan
42 transportation authority.

43 (k) "Housing stock" shall mean the total number of residential units
44 existing in a town, village, or city as reported in the most recently
45 published United States decennial census.

46 2. Notwithstanding the provisions of any local law, ordinance, resol-
47 ution or regulation, each village, town, and city shall allow the
48 construction and occupation of residential buildings on any covered site
49 up to the specified densities provided in this subdivision. Each
50 village, town, and city shall allow such construction and occupation on
51 an as-of-right, ministerial basis, without site plan review. Addi-
52 tionally, this section shall not reduce or disallow development rights
53 or options provided under local zoning laws.

54 (a) On any covered site located within a village, town, or city with
55 fewer than one million inhabitants, residential buildings with the
56 affordable floor area prescribed in subdivision seven of this section

1 shall be allowed up to a height of ten feet above the maximum height
2 otherwise applicable to the covered site as of the effective date of
3 this section and a density of a floor area up to thirty residential
4 units per acre.

5 (b) On any covered site located within a village, town, or city with
6 fewer than one million inhabitants, residential buildings with the
7 affordable floor area prescribed in subdivision seven of this section
8 which have received a loan from a municipal, state, or federal entity
9 and which enter into a regulatory agreement with such entity guarantee-
10 ing the provision of housing accommodations for persons and families of
11 low income shall be allowed up to a height of twenty feet above the
12 maximum height otherwise applicable to the covered site as of the effec-
13 tive date of this section and a density of up to fifty residential units
14 per acre.

15 (c) Provided, however, that the size of such residential buildings
16 within a village, town, or city with fewer than one million inhabitants
17 shall be further limited by this paragraph. Such building shall not
18 result in more than one hundred residential units, or five percent of
19 the housing stock, whichever is lower, in total on a covered site in
20 order to qualify for the as-of-right construction and occupation created
21 in this section. In the event that the residential building is located
22 within a quarter-mile radius of any publicly accessible area of a quali-
23 fying mass transit station, however, the residential building shall not
24 result in more than two hundred and fifty residential units, but shall
25 not be limited to a percentage of the housing stock, in total on a
26 covered site in order to qualify for the as-of-right construction and
27 occupation created in this section, provided that such publicly accessi-
28 ble area of a qualifying mass transit station includes, but is not
29 limited to, platforms, ticketing areas, waiting areas, entrances and
30 exits, and parking lots or parking structures that provide parking for
31 customers of such qualifying station and are a component of such
32 station.

33 (d) On any covered site located within a city with one million or more
34 inhabitants, residential buildings with the affordable floor area
35 prescribed in subdivision seven of this section shall be allowed up to a
36 height of ten feet above the maximum height otherwise applicable to the
37 covered site as of the effective date of this section and a density of a
38 floor area ratio of 2.2 square feet; provided, however, that if the
39 covered site is located within eight hundred feet of a zoning district
40 that permits a height or density for residential use greater than what
41 is otherwise provided for in this paragraph, then the city shall allow
42 residential buildings on the covered site up to the maximum height and
43 density permitted in such zoning district, or allow such residential
44 buildings to utilize any other optional rules or regulations regulating
45 residential bulk and height in such zoning district, provided, however
46 the residential building shall not have to comply with any other regu-
47 lations provided for in such zoning district other than bulk and height
48 regulations.

49 (e) On any covered site located within a city with one million or more
50 inhabitants, residential buildings with the affordable floor area
51 prescribed in subdivision seven of this section which have received a
52 loan from a municipal, state, or federal entity and which enter into a
53 regulatory agreement with such entity guaranteeing the provision of
54 housing accommodations for persons and families of low income shall be
55 allowed up to a height of twenty feet above the maximum height otherwise
56 applicable to the covered site as of the effective date of this section

1 and a density of a floor area ratio of three square feet, provided,
2 however, that if the covered site is located within eight hundred feet
3 of a zoning district that permits a height or density for residential
4 use greater than what is otherwise provided for in this paragraph, then
5 the city shall allow residential buildings on the covered site up to the
6 maximum height and density permitted in such zoning district, or allow
7 such residential buildings to utilize any other optional rules or regu-
8 lations regulating residential bulk and height in such zoning district,
9 provided, however the residential building shall not have to comply with
10 any other regulations provided for in such zoning district other than
11 bulk and height regulations.

12 For the purposes of this subdivision, the term "persons and families
13 of low income" shall have the meaning set forth in section two of the
14 private housing finance law.

15 3. If a religious corporation disposes of land via sale or lease for
16 development of a residential building pursuant to this section, an offi-
17 cer or key person, as defined in section one hundred two of the not-for-
18 profit corporation law, of such religious corporation who will be
19 involved in such sale or lease on behalf of the religious corporation
20 must have attended and received a certificate of completion of a train-
21 ing course on real estate development and affordable housing. Such
22 training course must include content regarding the development process,
23 timeline and funding sources for affordable and mixed-income housing,
24 the types and selection of vendors and consultants related to such
25 development, a review of the statutory requirements for such sale or
26 lease by a religious corporation and other information relevant to hous-
27 ing development as determined by the commissioner. Pursuant to the proc-
28 ess required by section twelve of the religious corporations law and/or
29 section five hundred ten of the not-for-profit corporation law, as
30 applicable, the religious corporation shall submit to the court or to
31 the attorney general a copy of such certificate of completion for such
32 training as a condition of a sale or lease of land for housing develop-
33 ment pursuant to this section. Such training may be conducted by any
34 governmental entity, religious corporation, or nonprofit, or any number
35 or combination of the foregoing, approved by the commissioner.

36 4. For buildings constructed pursuant to this section, a village,
37 town, or city may regulate the following, provided the regulation is
38 reasonable and applied equally to all residential developments and shall
39 not impede the full development of the floor area and height provided in
40 subdivision two of this section:

41 (a) the construction of sidewalks up to five feet in width and up to
42 five feet of street lawn or road verge along the parcel's street fron-
43 tage, including up to one street tree per twenty-five feet of frontage,
44 with standards to conform to the standard specifications for
45 construction and materials promulgated by the department of transpora-
46 tion;

47 (b) up to twenty feet of rear yard and up to ten feet of side yards at
48 the boundaries of the covered site; and

49 (c) appropriate placement of curb cuts for accessory parking or load-
50 ing that ensure public safety while also allowing reasonable access to
51 the parcel and the residential building.

52 5. For residential buildings constructed pursuant to this section, a
53 village, town, or city shall not require any development standards or
54 conditions of approval, other than state law, building, and fire codes,
55 or in the case of a city with one million or more inhabitants, local

fire and building codes. No village, town, or city shall require the following and any such requirements shall be void:

(a) the provision of accessory off-street parking;

(b) minimum, maximum, or average unit sizes;

(c) the regulation of the number of allowable housing units based on lot size or any other criteria, other than the densities prescribed in subdivision two of this section;

(d) the prioritization of housing units to residents of certain neighborhoods or jurisdictions;

(e) the prioritization of housing units for any age group;

(f) the imposition of any mandatory affordability requirements or minimum income or asset standards other than what is otherwise provided for in subdivision seven of this section;

(g) minimum purchase price for any homeownership units;

(h) the adherence to any local building or fire code beyond the standards specified by the New York State Uniform Fire Prevention and Building Code Act, except in a city with one million or more inhabitants; and

(i) any other requirement that is determined by a court, pursuant to proceedings brought under subdivision nine of this section, to impede the full development of permissible residential buildings on a covered site.

6. (a) Notwithstanding the provisions of any local law, ordinance, resolution or regulation, the building department shall ministerially and without discretionary review or a hearing process an application for a building permit within sixty days of receipt of an application pursuant to this section. If the building department does not process a completed application within sixty days of such receipt, the application shall be deemed approved. If the building department denies the application, the department shall, within sixty days of receipt of the application, return a full set of comments to the applicant with a list of items that are defective and/or deficient and a description of how the applicant can remedy the application.

(b) A village, town, or city shall not impose any substantial burden on buildings constructed pursuant to this section, as compared with new single-family residential buildings, including the provision of municipal services and utility access.

(c) Nothing in this section shall be construed to restrict the use or size of buildings permitted at a greater height and/or bulk than that allowed by this section under local law, regulation, or resolution.

(d) The approval by the building department shall only take into consideration conformance with this section and applicable state laws and state building, fire, and energy codes. No other local law, policy, regulation, or resolution shall be the basis for the denial of a permit, except in a city of one million or more inhabitants, where adherence to local building and fire codes may be required.

(e) No payment greater than one quarter dollar per square foot of floor area shall be required in total for building and other permits issued for residential developments constructed pursuant to this section. A town, village, or city shall not charge impact fees, recreation fees, or any other fees beyond the amount provided in this paragraph.

(f) (i) Notwithstanding article eight of the environmental conservation law and its implementing regulations, no environmental impact statement for a residential building shall be required if it conforms to the provisions of this section, provided the following studies and certifications are completed and submitted to the building department

1 and any state or local agencies as designated by the commissioner: a
2 Phase I Environmental Site Assessment (ESA) pursuant to the federal
3 Comprehensive Environmental Response, Compensation and Liability Act (42
4 U.S.C. Chapter 103); soil and water testing consistent with standards
5 promulgated by the commissioner of environmental conservation; and a
6 certification from a qualified environmental professional, where such
7 term shall be defined by the commissioner of environmental conservation
8 pursuant to regulation, that such action, as proposed, will not violate
9 any state wetland laws or drinking water laws under article eleven of
10 the public health law, or any rules or regulations promulgated thereto.

11 (ii) Provided further that environmental impact statements completed
12 pursuant to article eight of the environmental conservation law for
13 proposed actions other than the construction and occupation of residen-
14 tial buildings made possible by this section, which are completed on or
15 after the effective date of this section, shall not be required to
16 consider the as-of-right construction and occupation of residential
17 buildings made possible by this section on such other actions.

18 (g) For the purposes of fees and building permits, for buildings
19 constructed pursuant to this section, a village, town, or city shall not
20 discriminate between rental units and condominium or cooperative units.
21 No permit or additional fee shall be required as a condition for use as
22 a rental apartment building.

23 7. (a) All residential buildings constructed pursuant to this section
24 in a town, village, or city with fewer than one million inhabitants
25 shall set aside at least twenty percent of the residential floor area
26 for households earning an average of eighty percent of the area median
27 income. In a city with one million or more inhabitants, a residential
28 building shall provide affordable housing by complying with one of the
29 following options:

30 (i) the residential building shall set aside at least twenty-five
31 percent of its residential floor area for households earning an average
32 of sixty percent of the area median income provided that a minimum of
33 five percent of units are affordable to households at forty percent of
34 the area median income;

35 (ii) the residential building shall set aside at least thirty percent
36 of its residential floor area for households earning an average of
37 eighty percent of the area median income; or

38 (iii) the residential building shall set aside at least twenty percent
39 of its residential floor area for households earning an average of forty
40 percent of the area median income.

41 (b) The amount of affordable floor area shall be calculated by multi-
42 plying gross residential floor area by the percentage of the floor area
43 that must be affordable pursuant to this paragraph. The resulting floor
44 area must be devoted to affordable housing, less the applicable propor-
45 tion of the building devoted to residential circulation and common
46 space, not to exceed twenty-five percent of the affordable floor area.
47 The number of required affordable units shall be the affordability
48 percentage multiplied by the total number of residential units in the
49 development, with the product rounded to the nearest whole number. To
50 achieve the affordability levels specified in this paragraph, buildings
51 may contain units affordable to a variety of incomes, provided that on
52 average the affordability levels meet the requirements of this paragraph
53 and no affordable unit shall be rented to any household with an income
54 greater than one hundred percent of the area median income. Nothing in
55 this subdivision shall be construed to prohibit the inclusion of addi-

1 tional affordable floor area in a residential building on a covered
2 site, at the discretion of the owner of such building.

3 (c) A property containing any affordable units must be restricted
4 using a mechanism such as a declaration of restrictive covenants or a
5 regulatory agreement with a local or state agency that shall ensure that
6 the affordable units shall remain subject to affordable regulations for
7 the life of the building. Such covenants shall require that the unit be
8 the primary residence of the household selected to occupy the unit. Upon
9 approval, such declaration or regulatory agreement shall be recorded
10 against the property containing the affordable unit prior to the issu-
11 ance of a certificate of occupancy for the development.

12 (d) The affordable units shall be physically integrated into the
13 design of the development and shall be distributed among various sizes
14 (efficiency, one-, two-, three- and four-bedroom units) in the same
15 proportion as all other units in the development. The minimum gross
16 floor area per affordable unit shall not be less than ninety percent of
17 the average floor area of non-restricted housing units of equivalent
18 size (efficiency, one-, two-, three- and four-bedroom units) in the
19 development. Affordable units shall be distributed evenly among floors.

20 (e) The affordable units shall not be distinguishable from other units
21 from the outside or building exteriors. Interior finishes and
22 furnishings shall be indistinguishable from the other units in the
23 building. Affordable units shall not have a separate entrance or
24 differing access to common amenities. Buildings constructed pursuant to
25 this section may not charge residents of affordable units additional
26 fees for access to common amenities, if such charges would mean that
27 total housing costs for such units would exceed thirty percent of the
28 specified percentage of the area median income.

29 (f) For affordable homeownership units, the title to said property
30 shall be restricted so that in the event of any resale by the home buyer
31 or any successor, the resale price shall not exceed an amount affordable
32 to a household at the specified percentage of the area median income.

33 8. Nothing in this section shall be interpreted to override the New
34 York State Uniform Fire Prevention and Building Code Act, the Freshwater
35 Wetlands Act, the public health law, or any regulations, restrictions,
36 limitations, or conditions, existing as of the effective date of this
37 section, which have been placed upon a site, building, or structure
38 designated as a landmark or containing an interior landmark or in a
39 historic district under any local law, regulation, resolution, or ordi-
40 nance governing the demolition, construction, reconstruction, alter-
41 ation, and/or other work on or near such site, building, or structure.

42 9. (a) Upon a failure of a local government to timely act upon an
43 application to construct or occupy residences in accordance with this
44 section, or denial of such application in violation of this section, any
45 party aggrieved by any such failure or denial may commence a special
46 proceeding against the subject local government and the officer pursuant
47 to article seventy-eight of the civil practice law and rules, in the
48 supreme court within the judicial district in which the local government
49 or the greater portion of the territory is located, to compel compliance
50 with the provisions of this section.

51 (b) If, upon commencement of such proceeding, it shall appear to the
52 court that testimony is necessary for the proper disposition of the
53 matter, the court may take evidence and determine the matter. Alterna-
54 tively, the court may appoint a hearing officer pursuant to article
55 forty-three of the civil practice law and rules to take such evidence as
56 it may direct and report the same to the court with the hearing offi-

cer's findings of fact and conclusions of law, which shall constitute a part of the proceedings upon which the determination of the court shall be made. The court may reverse or affirm, wholly or partly, or may modify any decision brought to the court for review.

(c) Attorneys' fees and costs shall be allowed against the local government whose failure or refusal gave rise to the special proceeding in cases in which the denial of building permits is overturned by the court.

10. Notwithstanding the provisions of subdivision five of this section, a city, state, or federal housing agency may regulate the design, construction, occupancy, marketing, and leasing of affordable housing developed pursuant to this section when such agency is subsidizing the operations, development, or preservation of the housing and entering into a regulatory agreement with the owner thereof.

11. The division of housing and community renewal, the attorney general, and the department of environmental conservation shall have the authority to promulgate any rules and regulations necessary to implement the provisions of this section. No later than one year from the effective date of this section, the division of housing and community renewal shall promulgate rules and regulations including but not limited to the following:

(a) the percentage of a household's income that may be devoted to housing costs when initially occupying an affordable unit and which expenses shall be included in the calculation of housing costs;

(b) occupancy standards for affordable units;

(c) enforcement mechanisms to ensure permanent affordability of affordable units developed pursuant to this section;

(d) marketing standards for affordable units constructed pursuant to this section, provided, however, that a city of one million or more inhabitants may regulate the marketing and leasing of such affordable units according to the standard marketing guidelines promulgated by such city's department of housing preservation and development, and provided further that marketing standards for all units constructed pursuant to this section must include a requirement that they be leased or sold without consideration of an applicant's religious beliefs and/or practices; and

(e) the content of training that must be received by the religious corporation as a condition of the sale or lease of land for the development of a residential building pursuant to this section.

12. The division of housing and community renewal shall provide technical assistance to municipal governments to aid in the adherence to the provisions of this section and with the applicable revisions to local land use regulations and plans.

§ 3. This act shall take effect immediately.